

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2024-009268

BETWEEN:

DR MARCUS WEBB

Appellant

- and -

ASHWORTH & PARTNERS SOLICITORS

Respondent

APPELLANT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Appellant contends that the Respondent firm of solicitors was negligent in failing to advise him of material risks associated with a property development investment, resulting in the loss of his £850,000 investment.

B. RELEVANT FACTS

2. The Appellant instructed the Respondent in connection with his investment in a property development scheme in 2017.

3. The Respondent failed to advise that the developer had a history of failed projects and outstanding County Court judgments.

4. The Respondent did not explain the nature of the legal structure which left the Appellant's investment unsecured.

5. The development project collapsed in 2019 and the Appellant lost his entire investment of £850,000.

6. A competent solicitor would have discovered and advised on the developer's poor track record.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:

- Solicitors Act 1974
- Limitation Act 1980, s.14A

D. SUBMISSIONS

8. The Respondent owed a duty of care to advise on all material risks associated with the transaction.
9. A reasonably competent solicitor would have identified the developer's adverse history.
10. The Respondent failed to explain adequately the legal implications of the investment structure.
11. But for the Respondent's negligence, the Appellant would not have proceeded with the investment.

E. AUTHORITIES

12. The following authorities are relied upon:

- White v Jones [1995] 2 AC 207
- Midland Bank Trust Co Ltd v Hett Stubbs & Kemp [1979] Ch 384
- Mehjoo v Harben Barker [2014] EWCA Civ 358

F. RELIEF SOUGHT

13. The Appellant respectfully requests that this Court:

- Damages in the sum of £850,000
- Interest
- Costs

Michael Thompson KC

Michael Wilson

19 September 2022

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